

SENATE No. 400**The Commonwealth of Massachusetts**

PRESENTED BY:

Jason M. Lewis

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to ensure adequate and equitable funding for public education.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Jason M. Lewis</i>	<i>Fifth Middlesex</i>	
<i>Joanne M. Comerford</i>	<i>Hampshire, Franklin and Worcester</i>	
<i>Bruce E. Tarr</i>	<i>First Essex and Middlesex</i>	<i>1/23/2025</i>
<i>Rebecca L. Rausch</i>	<i>Norfolk, Worcester and Middlesex</i>	<i>1/23/2025</i>
<i>Kimberly N. Ferguson</i>	<i>1st Worcester</i>	<i>2/4/2025</i>
<i>Christopher M. Markey</i>	<i>9th Bristol</i>	<i>2/7/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>2/11/2025</i>
<i>David K. Muradian, Jr.</i>	<i>9th Worcester</i>	<i>2/21/2025</i>
<i>Colleen M. Garry</i>	<i>36th Middlesex</i>	<i>2/27/2025</i>
<i>Leigh Davis</i>	<i>3rd Berkshire</i>	<i>2/27/2025</i>
<i>Margaret R. Scarsdale</i>	<i>1st Middlesex</i>	<i>3/4/2025</i>
<i>Steven S. Howitt</i>	<i>4th Bristol</i>	<i>3/10/2025</i>
<i>Michael O. Moore</i>	<i>Second Worcester</i>	<i>3/10/2025</i>
<i>Barry R. Finegold</i>	<i>Second Essex and Middlesex</i>	<i>3/13/2025</i>
<i>Paul W. Mark</i>	<i>Berkshire, Hampden, Franklin and Hampshire</i>	<i>3/17/2025</i>
<i>Lindsay N. Sabadosa</i>	<i>1st Hampshire</i>	<i>3/21/2025</i>
<i>Peter J. Durant</i>	<i>Worcester and Hampshire</i>	<i>3/21/2025</i>

<i>Bradley H. Jones, Jr.</i>	<i>20th Middlesex</i>	<i>3/25/2025</i>
<i>Marcus S. Vaughn</i>	<i>9th Norfolk</i>	<i>4/8/2025</i>
<i>Hannah Kane</i>	<i>11th Worcester</i>	<i>4/15/2025</i>
<i>John J. Marsi</i>	<i>6th Worcester</i>	<i>5/12/2025</i>
<i>Adrienne Pusateri Ramos</i>	<i>14th Essex</i>	<i>6/12/2025</i>

SENATE No. 400

By Mr. Lewis, a petition (accompanied by bill, Senate, No. 400) of Jason M. Lewis, Joanne M. Comerford, Bruce E. Tarr, Rebecca L. Rausch and other members of the General Court that provisions be made for an investigation and study by a special commission (including members of the General Court) to ensure adequate and equitable funding for public education. Education.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to ensure adequate and equitable funding for public education.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 70 of the General Laws is hereby amended by striking section 4
2 and inserting in place thereof the following section:-

3 Section 4. (a) There shall be a commission to study and make recommendations for
4 adequately and equitably funding PreK-12 public education in the Commonwealth so that all
5 children may receive a high quality education that prepares them to lead full, productive lives.
6 The scope of the study shall include all aspects of the school funding formula as well as other
7 funding streams for PreK-12 public schools. The study shall include, but not be limited to, the
8 following areas: (i) all components of the foundation budget created pursuant to section 3 of
9 chapter 70 and subsequent changes made to the foundation budget by law; (ii) whether the cap
10 on the foundation inflation index should be removed; (iii) how to appropriately account for and
11 fund the level and acuity of need for special education services; (iv) how to appropriately
12 account for and fund the cost of transporting various types of students; (v) how to best address

the impact of low and declining enrollment on districts; (vi) how to best address the unique challenges faced by rural districts; (vii) the impact of the fixed 59 percent local share of the statewide foundation budget on the calculation of combined effort yield for each municipality and whether the local share should be changed; (viii) the extent to which the wealth and income measures in the formula accurately determine a municipality's ability to contribute to its foundation budget costs and whether these measures should be changed; (ix) the impact of the growing number of municipalities that are subject to the 82.5 percent maximum local contribution and whether this cap should be removed or changed; (x) the impact of section 21C of chapter 59 of the General Laws on municipalities and their ability to make their required local contributions; and (xi) any other aspect of the school funding formula or other school funding streams that the commission deems necessary to fulfill its mandate. The commission shall consider and recommend ways that resources can be utilized most efficiently and effectively.

(b) The commission shall include: the house and senate chairs of the joint committee on education, who shall serve as co-chairs; 1 member to be appointed by the president of the senate; 1 member to be appointed by the speaker of the house; 1 member to be appointed by the minority leader of the senate; 1 member to be appointed by the minority leader of the house; 1 member to be appointed by the chair of the senate committee on ways and means; 1 member to be appointed by the chair of the house committee on ways and means; the secretary of education or a designee; the commissioner of elementary and secondary education or a designee; the commissioner of revenue or a designee; a representative from the Massachusetts Teachers Association; a representative from the American Federation of Teachers-Massachusetts; a representative from the Massachusetts Budget and Policy Center, Inc.; a representative from the Massachusetts Association of Vocational Administrators, Inc.; a representative from the

Massachusetts Business Alliance for Education, Inc.; a representative from the Massachusetts Taxpayers Foundation, Inc.; a representative from the Massachusetts Association of School Superintendents, Inc.; a representative from the Massachusetts Association of School Business Officials, Inc.; a representative from the Massachusetts Municipal Association, Inc.; a representative from the Massachusetts Association of School Committees, Inc.; a representative from the Massachusetts Association of Regional Schools, Inc.; and 5 members to be appointed by the governor who shall have experience in elementary and secondary education finance or municipal finance, at least two of whom shall reside in rural areas of the commonwealth.

(c) The commission shall solicit public input and hold not less than 5 public hearings in different geographic areas of the commonwealth; provided that at least 1 hearing shall include an option for remote participation. The department of elementary and secondary education shall assist the commission by furnishing staff support, materials, and fiscal analysis as needed.

SECTION 2. Not later than June 30, 2027, the commission shall issue a report with findings and recommendations, including any legislative or regulatory changes that may be necessary to implement these recommendations. The report shall be submitted to the clerks of the house of representatives and senate, the joint committee on education, and the house and senate committees on ways and means.

SECTION 3. 7009-XXXX For the operation of the commission established under this act, including, but not limited to, staffing and administrative expenses..... \$250,000